

Violence Against Women Act is SUSTAINED without leave to amend.

Title VI Discrimination Is Not Sufficiently Pled

To state a claim under Title VI, a plaintiff must allege the defendant entity is engaged in prohibited discrimination and is involved in receiving federal financial assistance. (See *Joseph v. Boise State Univ.*, (D. Idaho 2024) 998 F.Supp.2d 928, 944.) Defendants argue that Plaintiff has failed to plead any facts showing that they intentionally discriminated against her based on any protected characteristics. (Demurrer, p. 11.) Plaintiff asserts that the discrimination is satisfactorily alleged, in that she alleged that Hampton told her that she had “no legal counsel” for Plaintiff and abruptly terminated a phone call during Plaintiff’s issue conference on August 9, 2024, and that Defendants “complete failure to provide services promised in the retainer agreement, combined with affirmative misrepresentations about attending court proceedings, demonstrates treatment that falls below the standard BayLegal provides to other clients.” (Complaint, p. 35.)

The Court agrees with Defendants that the allegations Plaintiff has asserted do not show discrimination on the part of Defendants.

In light of this, Defendants’ demurrer to Plaintiff’s cause of action for Title VI Discrimination is SUSTAINED with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendants’ demurrer to the cause of action asserting a Violence Against Women Act claim without leave to amend. The Court **SUSTAINS** Defendants’ demurrer to the remaining causes of action with leave to amend. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

11. 9:00 AM CASE NUMBER: C25-02836
CASE NAME: MOFOLUSO OLALEMI AND FAMILY VS. BAY AREA LEGAL AID CONTRA COSTA COUNTY REGIONAL OFFICE
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: MOFOLUSO OLALEMI AND FAMILY
TENTATIVE RULING:

This motion is denied as moot as Defendants’ demurrer is SUSTAINED in full. See Line 10 above.